# PATENT LICENSE AGREEMENT AGR-0026

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This Patent License Agreement ("Agreement") is entered into on May 28, 2018 by the National Aeronautics and Space Administration ("NASA"), an agency of the United States, and Meridian Bioprocess, Inc. ("Licensee"), having its principal place of business at 22 Lab Park, Durham, NC 27709.

Article 1. Grant. Subject to the terms of this Agreement, NASA grants Licensee an exclusive license under the Licensed Patents to make, use, and sell Licensed Products within the Field of Use and the Licensed Territory. The Licensed Patents are U.S. Patent No. 8,197,249 (NASA Case No. LEW-17786-1).

Article 2. Field of Use. The Field of Use is limited to gas fired products for heating, ventilation, and air conditioning industry including water heaters, boilers, space heaters, combined heating, cooling and power, heat pumps, roof top units, and furnaces. DATES: The prospective exclusive license may be granted unless, NASA receives written objections, including evidence and argument no later than April 3, 2018 that establish that the grant of the license would not be consistent with the requirements regarding the licensing of federally owned inventions as set forth in the Bayh-Dole Act and implementing regulations.

Article 3. Licensed Territory. The Licensed Territory is United States (ISO 3166 code US).

Article 4. Term. This Agreement takes effect on June 2, 2018 and remains in force until May 30, 2028, unless terminated earlier under its terms.

Article 5. Royalties. Licensee shall pay NASA a running royalty of 1.9 percent of Net Sales and a minimum annual royalty of 25,000 U.S. dollars. This Article is confidential.

Article 6. Sublicensing. Licensee may grant sublicenses within the Field of Use with the prior written consent of NASA.

Article 7. Export Control. Licensee shall comply with all United States export control laws and regulations that apply to the Licensed Products and related technical data.

Article 8. Signatures. Signed for NASA by the Licensing Officer, NASA Glenn Research Center, and for Licensee by its authorized officer.